

X

X

Defendants Address:
The New York City Law Department
100 Church Street ,NY. NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

X

GIOVONNA BRIGHTHART, AS MOTHER AND NATURAL
GUARDIAN OF (J.R). AN INFANT UNDER
THE AGE OF EIGHTEEN, AND GIOVONNA GRIGHTHART,
INDIVIDUALLY.

Plaintiffs,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P. O. MALLOL, TAX REGISTRATION NO. 960857, 48th PRECINCT,
IN HIS INDIVIDUAL AND OFFICIAL CAPACITY, AND
P.O. HILARIO, TAX REGISTRATION NO. 962475, 48th PRECINCT,
IN HIS INDIVIDUAL CAPACITY AND OFFICIAL CAPACITY.

Defendants.

X

COMPLAINT

Index No.

**Plaintiff Designates Bronx
County as the Place of Trial
Jury Trial Demanded**

Plaintiffs, by their attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for their Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officers Mallol and Hilario who are believed to be assigned to the 48th police precinct located 450 Cross Bronx, Expressway, Bronx, New York , at the time of this incident complained of herein.

PRELIMINARY STATEMENT

1. This action is brought pursuant to 42 U.S.C. Section 1983, as applicable to the Fourth and Fourteenth Amendment to the Constitution of the United States and pursuant to the common law of the State of New York.

2. This action is brought against the Defendant police officers who knowingly and willfully engaged in the unreasonable use of force and unreasonable seizure in violation of

Plaintiff's federal rights when officer Mallol or his partner, officer Hilario unjustifiably shot Plaintiff's dog nearly missing J.R.

3. In addition, Plaintiffs brings claims against the Defendants pursuant to New York State law when officer one of the officers, knowingly and recklessly fired his weapon at Plaintiff's dog as (J.R.), a sixteen-year-old girl was kneeling next to her dog at the time the officer fired his gun, missing J.R. by only inches, without legal justification.

4. The February 27, 2022, incident complained of as set forth herein, traumatized the Plaintiffs and caused Plaintiffs severe emotional distress for which this action seeks to recovery financial compensation for the reckless endangerment of Plaintiffs. Giovonna Brighthart and her sixteen-year-old daughter, J.R.

JURISDICTION AND VENUE

5. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the State of New York.

6. This action arises under the Fourth and Fourteenth Amendment to the Constitution of the United States pursuant to 42 U.S.C Section 1983 and under Article 1 Section 12 of the Constitution of the State of New York , and under the Common law of the State of New York for Plaintiff's malicious prosecution.

7. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action based on 42 U. S. Code Section. 1983.

8. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the State

of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

9. Plaintiff, Giovonna Brighthart at all relevant times was and remains a resident of the State of New York, Bronx, County. Ms. Brighthart is the natural mother of a sixteen-year girl, J.R.

10. (J.R.). is a sixteen-year-old minor who currently resides with her mother Giovonna Brighthart. J.R. is a resident of the State of New York, Bronx, County.

11. The City of New York is a municipal corporation duly organized under the laws of the State of New York.

12. At all times relevant and set forth herein, the City of New York acting through the New York City Police Department was responsible for the policies, practices, training, supervision and conduct of the Defendants, police officers Mallol and Hilario.

13. The City of New York is responsible for enforcing the rules of the New York City Police Department and the police officers within the New York City Police Department and for ensuring that the Defendants police officers named herein , obey the laws of the State of New York and the laws pursuant to the Constitution of the United States.

14. That at all relevant times the Defendant police officers were acting within the scope of their employment within the New York City Police Department under color of state law.

15. At all times relevant herein the Defendants, Mallol and Hilario, as police officers of the City of New York, were and still remain, police officers employed by the New York City Police Department who acted in the capacity of agent, servant, and employee of the City of New

York, New York City Police Department within the scope of their employment and as such acted under color of state law.

JURY DEMAND

16. Plaintiffs demands trial by jury on all issues set forth in this Complaint.

NOTICE OF CLAIM

17. Plaintiffs, in furtherance of their New York State causes of action, filed a timely Notice of Claim, within ninety days of the alleged incident against the named Defendants and the City of New York in compliance with General Municipal Law Section 50-e.

18. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claims.

19. This action has been commenced within one year and ninety days in accordance with General Municipal law Section 50-e.

20. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

21. That the Plaintiffs have satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

22. That by reason of the foregoing, Plaintiffs have been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

23. On February 27, 2022, at approximately 10 o'clock am, Ms. Brighthart's sixteen-year-old daughter, J.R., called 911 for police assistance because Ms. Brighthart's former boyfriend,

James Locus, was inside Plaintiff home 820 East 180th St., Bronx, New York, threatening J.R.'s mother, Giovonna Brighthart.

24. No weapons were inside the Plaintiff's home at the time of the 911 phone call.

25. Mr. Locus was not armed at the time of this incident.

26. Two New York City Police officers arrived at the Plaintiff's home in response to the 911 call.

27. The officers knocked on the Plaintiffs' door.

28. J.R. responded by opening the door to her apartment.

29. Ms. Brighthart heard the knocking at the door and came out of her bedroom and greeted the officers as the door was held open by her daughter.

30. Plaintiff's dog began barking from inside the back of the residence as the officers stood at the door.

31. That the officers asked Ms. Brighthart if the dog was secure.

32. Ms. Brighthart responded by informing the officers that her dog named "Bullet" a Rottweiler, was in fact secured inside Plaintiff's master bedroom. Bullet is trained to go to the master bedroom when he hears strangers knocking on the door.

33. One of the officers asked Ms. Brighthart and her daughter to step outside their apartment into the hallway.

34. The Plaintiffs immediately complied by closing the door to their apartment and met the officers in the hallway.

35. Ms. Brighthart provided proof to the officers that she and her daughter resided in the residence and that Mr. Locus did not live with the Plaintiffs and had no right to be remain in Plaintiffs' apartment without consent.

36. The officers proceeded to ask Mr. Locus for his identification and proof that he resided inside the Claimants' residence.

37. Mr. Locus told the officers that he had proof of his residency inside the master bedroom.

38. Mr. Locus informed the officers that he had to release the dog in order for him to retrieve his identification. (Emphasis added).

39. The officers acknowledged that Mr. Locus was going to go and open the door to the master bedroom where Plaintiffs dog was kept in order to retrieve his identification.

40. The officers said "ok".

41. The officers closed the front door to the apartment and allowed Mr. Locus to retrieve his identification from the master bedroom.

42. Prior to closing the door, Ms. Brighthart noticed that she did have the keys to her apartment and informed the officers.

43. One of the officers advised Ms. Brighthart to remain outside her home due to the domestic dispute.

44. The officer however, allowed J.R. to go back inside her residence to retrieve her mother's house keys.

45. At the time the officers informed J.R. that she would be allowed to enter the residence, the dog was now at the front door.

46. Mr. Locus had let the dog out of the master bedroom as he had indicated to the police and now the dog was at the door.

47. The officers knew or should have known that when Mr. Locus informed the officers that he needed to retrieve his identification from the bedroom that there was a risk that the dog would run out.

48. One of the responding officers however, opened the door to apartment and upon seeing the dog, the officers ran away from the front door towards the elevator in the hallway of the building. Plaintiffs' dog was still inside the apartment.

49. J.R. immediately informed the officers that she could get inside her home **and make sure the dog does not come out of the house.**

50. The officers said "ok".

51. That before J.R. could enter the apartment **one of the officers inexplicably pushed the door wide open causing the dog to be released.**

52. One of the officers ran towards the elevator upon seeing the dog. The other officer ran down the hallway towards the entrance of the balcony.

53. J.R. ran after her dog and retrieved the dog by holding her dog around his neck with both of her hands.

54. J.R. had the dog in her grasp with both of her hands held around her dog in a bear hug as she knelt so that the dog would not move towards the officers.

55. The dog was tightly secured and held by J.R. and did not run towards the officers.

56. Plaintiffs' dog exhibited no threat or any form of aggressive behavior towards either officer.

57. Yet, without warning, and with J.R. hugging her dog in the hallway, one of the officers fired his weapon and shot Plaintiffs' dog narrowly missing J.R. who was knelling next to her dog.

58. The officer **fired his weapon a second time** towards the dog. The second shot did not hit the dog but came close to hitting J.R. as she looked on in horror.

59. The second bullet hit the floor of the hallway.

60. The officer fired his weapon in complete disregard to the risk of serious injury to J.R.

61. The officer was aware of the risk of killing J.R. when he fired his weapon and chose to ignore the risk of injury to J.R. who was knelling on the ground holding her dog.

62. Bullet was severely injured and was taken to the Animal Care Center of NYC located at 328 East 110th St., New York, New York for gun wounds to his right leg.

63. Plaintiffs' dog was sedated and Bullet's right leg was placed in a cast.

64. Bullet was limping with his leg in a cast, unable to walk normally for approximately two weeks during his recovery from the bullet wounds suffered from the gun of one of the Defendant police officers.

65. Ms. Brighthart and her daughter were stunned and traumatized form the unlawful and unreasonable use of force exhibited by the Defendant police officer and the officer's reckless disregard to J.R.'s life as the shots fired by the officer narrowly missed hit J.R.

66. Ms. Brighthart was also traumatized knowing that her daughter could have been killed by the negligence of the officer who recklessly fired his weapon in close proximity to her daughter.

67. The dog posed no threat to the officers at the time of the shooting.

68. The second bullet fired by the officer missed J.R. by a fraction of inches.

69. J.R saw the smoke coming out of the officers' gun as she was knelling on the ground with her arms tightly holding her dog.

70. The officer's use of deadly force as set forth herein was patently unreasonable, unjustified, and shocking the consciousness of a civilized society.

71. That Plaintiff's dog posed no imminent threat to the officer at the time of the shooting which would justify the use of force inflicted by the Defendant police officer.

72. That the Defendant officers violated Plaintiffs' Fourth and Fourteenth Amendment rights against unreasonable seizure when one of the Defendant police officers discharged his weapon without regards to the safety, health and welfare or the serious risk of injury to the Plaintiff's especially J.R. who was kneeling next to her dog with the officer fired his weapon twice striking Plaintiffs' dog once in his leg.

73. The shooting constituted an unlawful and unreasonable intrusion and destruction of Plaintiff's property interest.

74. That J.R. was unreasonably seized by the unreasonable use of force described herein.

75. The police officer fired his weapon with deliberate indifference to Plaintiffs' constitutional rights.

76. That the officer engaged in a wanton, malicious and reckless act with reckless disregard and reckless endangerment of J. R.

77. That the officer who discharged his weapon violated New York City Police Department Guidelines that police officers " **shall not discharge their firearms at a dog or other animal except to protect themselves or another person from physical injury and there is no other reasonable means to eliminate the threat .**" **NYPD Annual Firearm Report.**

78. Upon information and belief, The NYPD intentionally killed nine dogs during calendar year 2014.

79. That Plaintiff's suffered severe emotional distress, pain and suffering from the officer's unreasonable use of force in discharging his firearm at Plaintiff's dog without an imminent threat of physical injury and in direct violation of NYPD policy.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST OFFICERS MALLOL AND
HILARIO PURSUANT TO THE FOURTH AND FOURTEENTH AMENDMENT TO
THE CONSTITUTION OF THE UNITED STATES FOR UNREASONABLE SEIZURE
PURSUANT TO 42 U.S.C. SECTION 1983**

80. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "79", with the same force and effect as though more fully set forth at length herein

81. The New York City Police Department has a recognized policy of the use of force by members of the service in discharging firearms at dogs or animals which states that police officers " **shall not discharge their firearms at a dog or other animal except to protect themselves or another person from physical injury and there is no other reasonable means to eliminate the threat.**" (Emphasis added)

82. On February 27, 2022, at approximately 10 o'clock am. Ms. Brighthart's sixteen-year-old daughter, J.R., called 911 for police assistance because Ms. Brighthart's former boyfriend, James Locus, was inside Plaintiff home 820 East 180th St., Bronx, New York, threatening J.R's mother, Giovonna Brighthart.

83. No weapons were inside the Plaintiff's home at the time of the 911 phone call.

84. Mr. Locus was not armed at the time of this incident.

85. Two New York City Police officers arrived at the Plaintiff's home in response to the 911 call.

86. The officers knocked on the Plaintiffs' door.

87. J.R. responded by opening the door to her apartment.

88. Ms. Brighthart heard the knocking at the door and came out of her bedroom and greeted the officers as the door was held open by her daughter.

89. Plaintiff's dog began barking from inside the back of the residence as the officers stood at the door.

90. That the officers asked Ms. Brighthart if the dog was secure.

91. Ms. Brighthart responded by informing the officers that her dog named "Bullet" a Rottweiler, was in fact secured inside Plaintiff's master bedroom. Bullet is trained to go to the master bedroom when he hears strangers knocking on the door.

92. One of the officers asked Ms. Brighthart and her daughter to step outside their apartment into the hallway.

93. The Plaintiffs immediately complied by closing the door to their apartment and met the officers in the hallway.

94. Ms. Brighthart provided proof to the officers that she and her daughter resided in the residence and that Mr. Locus did not live with the Plaintiffs and had no right to be remain in Plaintiffs' apartment without consent.

95. The officers proceeded to ask Mr. Locus for his identification and proof that he resided inside the Claimants' residence.

96. Mr. Locus told the officers that he had proof of his residency inside the master bedroom.

97. **Mr. Locus informed the officers that he had to release the dog in order for him to retrieve his identification. (Emphasis added).**

98. The officers acknowledged that Mr. Locus was going to go and open the door to the master bedroom where Plaintiffs dog was kept in order to retrieve his identification.

99. The officers said" ok". (Emphasis added)

100. The officers closed the front door to the apartment and allowed Mr. Locus to retrieve his identification from the master bedroom.

101. That prior to closing the door, Ms. Brighthart noticed that she did have the keys to her apartment and informed the officers.

102. One of the officers advised Ms. Brighthart to remain outside her home due to the domestic dispute.

103. The officer however, allowed J.R. to go back inside her residence to retrieve her mother's house keys.

104. At the time the officers informed J.R. that she would be allowed to enter the residence, the dog was now at the front door.

105. Mr. Locus had let the dog out of the master bedroom as he had indicated to the police and now the dog was at the door.

106. The officers knew or should have known that when Mr. Locus informed the officers that he needed to retrieve his identification from the bedroom that there was a risk that the dog would run out.

107. One of the responding officers however, opened the door to apartment and upon seeing the dog, the officers ran away from the front door towards the elevator in the hallway of the building. Plaintiffs' dog was still inside the apartment.

108. J.R. immediately informed the officers that she could get inside her home **and make sure the dog does not come out of the house.**

109. The officers said "ok".

110. That before J.R. could enter the apartment **one of the officers inexplicably pushed the door wide open causing the dog to be released.**

111. One of the officers ran towards the elevator upon seeing the dog. The other officer ran down the hallway towards the entrance of the balcony.

112. J.R. ran after her dog and retrieved the dog by holding her dog around his neck with both of her hands.

113. J.R. had the dog in her grasp with both of her hands held around her dog in a bear hug as she knelt so that the dog would not move towards the officers.

114. The dog was tightly held by J.R. and did not run towards the officers.

115. Plaintiffs' dog exhibited no threat or any form of aggressive behavior towards either officer.

116. Yet, without warning, and with J.R. hugging her dog in the hallway, one of the officers fired his weapon and shot Plaintiffs' dog narrowly missing J.R. who was knelling next to her dog.

117. The officer fired his weapon a second time towards the dog. The second shot did not hit the dog but came close to hitting J.R. as she looked on in horror.

118. The second bullet hit the floor of the hallway.

119. The officer fired his weapon in complete disregard to the risk of serious injury to J.R.

120. That one of the Defendant officers violated Plaintiffs Fourth Amendment right against unreasonable seizure in direct contravention to the New York City Police Department Guidelines.

121. The officer unreasonably interfered with J.R.'s and Ms. Brighthart's individual right and their possessory interest in their dog.

122. That at the time the officer fired his weapon the dog posed no imminent threat to the Defendant police officer.

123. The dog was not running towards the officers at the time the officer fired his weapon, in fact the dog was being held by J.R.

124. That based on the totality of the circumstances no reasonably objective police officer would have discharged his or her weapon with a child being so close to her beloved dog who was secured in the arms of its owner. Constitutional

125. That as a direct and proximate cause of the acts committed by the Defendant officer, Plaintiffs have suffered severe emotional distress, past, present and future in an amount that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
FOR AN UNCONSTITUTIONAL DE FACTO POLICY AND PRACTICE OF FAILING
TO TRAIN POLICE OFFICERS IN DISCHARGING FIREARMS TOWARDS
ANIMALS.**

126. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "125", with the same force and effect as though more fully set forth at length herein

127. That the acts committed by the police officer who twice discharged his weapon at Plaintiff's dog was a direct consequence of the de facto practice and policies of failing to properly train New York City Police officers in the use of force towards dogs and animals.

128. The NYPD has set forth the standard for the use of force by members of the service when confronted by dogs, the NYPD has been deliberately indifferent to training police officers

in the proper use of force under situation involving the once confronted by the officers involved in the instant incident..

129. That the practice of ignoring the guidelines provided in the NYCPD Patrol Guide was and continues be to a deliberate indifference to the rights of the Plaintiffs and of individuals that the NYPD officers are likely to encounter.

130. That the repeated constitutional violations establishes a clear need for additional and proper training for New York City Police officers in discharging their weapons involving dogs.

131. As a consequence the Plaintiffs have be injured thereof.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK FOR
RESPONDEAT SUPERIOR.**

132. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 131 ", with the same force and effect as though more fully set forth at length herein.

133. That at all relevant times the officers in the instant action acted under color of state law and within the scope of their employment.

134. The acts described more fully in the preceding paragraphs were committed without authority of law and constituted an abuse of power and authority vested by the State of New York and by the City of New York..

135. That the conduct of the Defendants occurred while they were on duty during the course and scope of their duties and functions as police officers of the New York City Police Department, as employees and as agents and employees of the Defendant City of New York.

136. The City of New York is therefore liable to Plaintiffs for the reckless and negligent actions of the officer who recklessly fired his weapon in complete disregard to the lives, safety

and welfare of the Plaintiffs causing Plaintiffs to suffer severe pain and suffering and emotional distress.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS MALLOL AND HILARIO FOR THE INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS OF THE PLAINTIFFS PURSUANT TO THE COMMON LAW OF THE STATE OF NEW YORK

137. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “136” with the same force and effect as though more fully set forth at length herein

138. That this action is brought against officer. Mallol or Hilario, one of whom is responsible for recklessly discharging his firearm and causing injuries to the Plaintiffs.

139. Offers Mallol and Hilario are agents, servants and/or employees of the New York City Police Department who responded to J.R.’s initial 911 call for police assistance.

140. One of the Defendant officers fired his firearm towards Plaintiff, J.R. who was a few feet away from the officer kneeling on the ground with her hands held around her dog’s neck and body preventing the dog from running away.

141. That at no time during the incident complained of did Plaintiffs’ dog run towards or leap at the officer who fired his weapon without the imminent threat of being attacked by Plaintiff’s dog.

142. The officer intentionally, recklessly and carelessly fired his weapon with deliberate indifference to the life, safety and welfare of J.R. and her mother, Ms. Brighthart.

143. That by reason of the foregoing, Plaintiffs Brighthart and her daughter, J.R. have suffered mental and emotional distress due to Defendants’ unlawful and reckless actions as more fully described herein.

144. That Plaintiffs' claim for Intentional Infliction of Emotional Distress was caused by one of the above police officers who knowingly and willfully, without reason, privilege or probable cause, fired his weapon hitting Plaintiffs' dog as J.R. was kneeling directly in front of the officer holding her dog around his body.

145. That the officer's misconduct as more fully described above was extreme and outrageous and intended to cause severe emotional distress to the Plaintiffs.

146. That as a direct and proximate result of the misconduct and abuse of authority Plaintiffs have been injured and has sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANT
MALLOL OR HILARIO FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS PURSUANT TO THE COMMON LAW OF THE STATE OF NEW
YORK**

147. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "146" with the same force and effect as though more fully set forth at length herein

148. That officers Mallol and Hilario, as members of the New York City Police Department owed a duty to the Plaintiffs to use reasonable care in the performance of the public function as police officers in the City of New York..

149. That one of the officers breached his duty to the Plaintiffs by firing his weapon directly towards J.R. in response to an ill-conceived threat of harm by Plaintiffs' dog, recklessly endangering the welfare of the Plaintiffs.

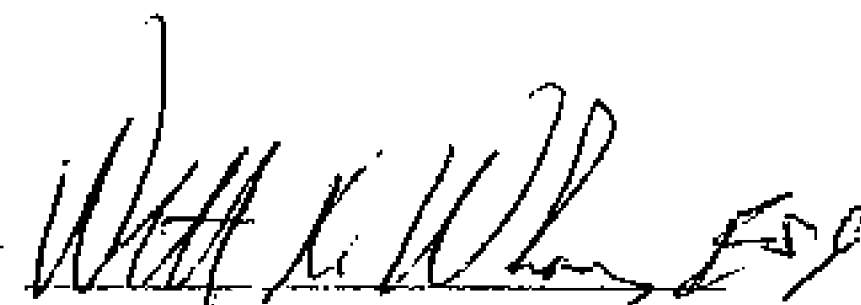
150. As a result of the negligent acts Plaintiffs suffered severe emotional distress, mental trauma and bodily harm.

WHEREFORE, Plaintiffs demands judgment and relief against Defendants jointly and severally as follows:

- A. Awarding Plaintiffs compensatory damages in an amount that is fair and equitable to be fixed at trial.
- B. Awarding punitive damages to Plaintiffs in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.
- C. An award to Plaintiffs for the costs and disbursements associated with this action herein.
- D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- E. Granting such other and further relief as this Court may deem just and proper.

Dated: May 27, 2022

Bronx, New York

By 
Welton K. Wisham, Esq.
The Law Office of Welton K. Wisham
1200 Waters Pl., Suite 105
Bronx, New York 10461
(718) 924- 3557 Office
(718) 678-8062 Fax
Attorney for the Plaintiff
Email: wkwisham@optonline.net

IN THE MATTER OF THE CLAIM OF

X

GIOVONNA BRIGHTHART AS MOTHER AND NATURAL
GUARDIAN OF J.R. AN INFANT UNDER THE AGE OF
EIGHTEEN, AND GIOVONNA BRIGHTHART, INDIVIDUALLY

AFFIDAVIT

Claimants,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P. O. MALLOL, IN HIS INDIVIDUAL AND OFFICIAL CAPACITY, AND
P.O. HILARIO, IN HIS INDIVIDUAL CAPACITY AND OFFICIAL CAPACITY.

Respondents,

X

To: COMPTROLLER OF THE CITY OF NEW YORK

STATE OF NEW YORK)

) ss.:

COUNTY OF NEW YORK)

I, GIOVONNA BRIGHTHART duly sworn, deposes and says under penalty of perjury that :

Deponent is the Claimant in the within action, that I have read the foregoing Notice of Claim
and knows the contents thereof ; that the same is true to deponent's own knowledge, except as to
those matters therein stated to be alleged on information and belief, and that as to those matters
deponent believes them to be true.



Giovanna Brighthart
820 East 180th St. Apt 8Q
Bronx, New York 10467

Sworn to before me
This 27th day of May, 2022


NOTARY PUBLIC

WILTON K. WILSON, ESQ.
Notary Public, State of New York
No. 64888-000
Qualified in Bronx County
Commission Expires 1-28-2023

02WE6386783
1-28-2023